

5. In the application of this Act to Ireland the following modification shall be made :—

Application
of Act to
Ireland.

Articles of clerkship shall include indentures of apprenticeship.

6.—(1.) An Order in Council applying this Act to a court in a British possession may provide that solicitors of that court may be admitted by virtue of this Act to be solicitors in any part of the United Kingdom, namely, England, Scotland, or Ireland, or in two or one of those parts only.

Modification
in applica-
tion of Act
to different
parts of the
United
Kingdom.

(2.) A person admitted under this Act to be a solicitor in one part of the United Kingdom shall not, while remaining a solicitor there, be admitted under this Act to be a solicitor in any other part of the United Kingdom.

7.—(1.) This Act may be cited as the Colonial Solicitors Act, 1900.

Short title,
repeal, and
commence-
ment of Act.

(2.) The Acts specified in the schedule to this Act are hereby repealed.

(3.) This Act shall come into operation on the first day of January one thousand nine hundred and one.

SCHEDULE.

Session and Chapter.	Title.
20 & 21 Vict. c. 39. -	The Colonial Attorneys Relief Act.
37 & 38 Vict. c. 41. -	The Colonial Attorneys Relief Act.
47 & 48 Vict. c. 24. -	The Colonial Attorneys Relief Act Amend- ment Act, 1884.

CHAPTER 15.

An Act to amend the Law relating to Burial Grounds.

[10th July 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1.) The burial authority for any burial ground may, if they think fit, apply to the bishop to consecrate any portion of the burial ground approved in that behalf by the Secretary of State.

Consecration.

(2.) If the burial authority do not make the application within a reasonable time after a request in that behalf, and the Secretary of State is satisfied that a reasonable number of the persons for whom, or within the area for which, the burial ground is provided desire that a portion of it be consecrated, and that the consecration fees have been paid or reasonably secured, the Secretary of State may make the application in respect of an approved portion of the burial ground, and the bishop may consecrate accordingly, and it shall be the duty of the burial authority to make such arrangements as may be necessary for the consecration.

Chapels.

2.—(1.) A burial authority may at their own cost erect on any part of their burial ground, which is not consecrated or set apart for the exclusive use of any particular denomination, any chapel which they consider necessary for the due performance of funeral services, but any chapel so erected after the passing of this Act shall not be consecrated or reserved for the exclusive use of any denomination.

(2.) A burial authority may, at the request and cost of the residents within their district belonging to any particular denomination, erect, furnish, and maintain a chapel for funeral services according to the rites of that denomination on the ground appropriated to their use.

(3.) Where such a request is made and the estimated costs are tendered to the burial authority or reasonably secured, then, if the burial authority refuse to grant the request or fail to give effect to it within a reasonable time, a Secretary of State may, if he thinks fit, by order in writing, require the burial authority to erect, furnish, and maintain, or to give facilities for erecting, furnishing, and maintaining, such a chapel in accordance with directions given in the order, and the burial authority shall comply with the order.

42 & 43 Vict.
c. 31.

(4.) Subject to the provisions of this section the obligation of a burial authority to build a chapel within the consecrated part of a burial ground provided under the Public Health (Interments) Act, 1879, shall cease.

Fees.

3.—(1.) Every burial authority shall submit to the Secretary of State a table of fees to be received by them in respect of services rendered by any minister of religion or sexton, and the Secretary of State may approve the table with or without modifications. Provided that such fees shall be of the same amount in respect of burial service in the consecrated and the unconsecrated parts of a burial ground.

(2.) If the burial authority fail to submit such a table on being requested to do so by the Secretary of State, he may make a table of fees.

(3.) The fees fixed by the table shall be payable to and collected by the burial authority, together with the other fees payable to them, and shall be paid by the burial authority to the minister or sexton in such manner as may be agreed on, or as in default of agreement may be directed by the Secretary of State.

(4.) Subject to the provisions of this section, no fee shall be payable to any incumbent of a parish in respect of any right of

exclusive burial, or the erection of a monument, or any other matter whatsoever, in any burial ground maintained by a burial authority, except for services rendered by him, and this enactment shall apply to any such fee which is by law or custom payable to the churchwardens of any parish or to trustees or other persons for any parochial purpose, or for the discharge of any debt or liability, in like manner as it applies to fees payable to an incumbent.

Provided as follows :—

- (i.) Where, at the passing of this Act, fees other than for services rendered are payable in respect of any matter arising in any burial ground attached to or used for the purposes of a parish, and laid out and used before the passing of this Act, the like fees shall continue to be paid during the incumbency of the person who, at the passing of this Act, is the incumbent of the parish, or during a period of fifteen years from the passing of this Act, whichever is longer, or if the fees are not paid to the incumbent, or to any person claiming through or under him, then during the said period of fifteen years, and shall be applicable to the like purposes as heretofore, and the burial authority shall collect and pay these fees in like manner as the fees to be paid for services rendered ;
- (ii.) The Ecclesiastical Commissioners may at the request and subject to the approval of the incumbent, or other person interested, agree with any burial authority for such payment, periodical or otherwise, as may be thought equitable in commutation of the fees other than those claimed for services rendered, and an agreement so approved shall be binding on the persons for the time being interested, and the burial authority may make accordingly any payment so agreed upon. Where the fees are paid to an incumbent, or to any person claiming through or under him, the Ecclesiastical Commissioners shall apply the commutation money in the first instance to such compensation of the existing incumbent as they may deem equitable, regard being had to all the circumstances of the case ; and the residue, if any, for the augmentation of the benefice.

(5.) No fee, other than fees payable to a sexton for services rendered by him, shall be paid to any clerk or other ecclesiastical officer in respect of interments in a burial ground maintained by a burial authority. Provided that any clerk or other ecclesiastical officer who at the passing of this Act is entitled to fees in respect of interments in any such burial ground may apply to the burial authority for compensation for the pecuniary loss caused to him by the foregoing enactment, and the burial authority shall receive and consider the application, and pay to him such sum of money as equitable compensation for his loss and in such manner as may be agreed on, or in default of agreement may be directed by the Secretary of State.

(6.) For the purposes of this section, a burial authority may borrow in like manner and subject to the like conditions as they may borrow for the provision of a burial ground.

(7.) The provisions of this section, except those as to collection, shall apply to any fixed annual sum substituted for fees in pursuance of section thirty-seven of the Burials Act, 1852, in like manner as they apply to fees.

Transfer of
powers to
Local
Government
Board.

4. The powers and duties of the Secretary of State under or referred to in the enactments in the First Schedule to this Act shall be transferred to the Local Government Board, and those enactments shall have effect as if any reference therein to a Secretary of State were a reference to the Local Government Board.

•Inquiries by
Secretary of
State.

5.—(1.) The Secretary of State may, if he thinks fit, appoint any person to inquire into any matter relating to the consecration of any part of a burial ground, or the building of any chapel therein, or the fixing, varying, or commutation of or compensation for any fees payable to ministers of religion, ecclesiastical officers, and sextons in connection therewith.

(2.) The Secretary of State may make such order as he thinks just as to the payment by the burial authority or other parties of the whole or any part of the costs of the inquiry, including the remuneration and expenses herein-after mentioned. Any such order may direct payment to be made to the Exchequer or other parties, and may be enforced as if it were an order of the High Court.

(3.) The Secretary of State may assign to any person appointed under this section such remuneration not exceeding five guineas a day as he may think fit, and a suitable allowance for expenses, and the remuneration and allowance so assigned shall, except so far as otherwise provided, be paid out of moneys provided by Parliament.

Protection of
unconsecrated
burial ground.

6. Unconsecrated ground which is maintained by a burial authority and set apart for the purposes of burial shall not be applied to any other purpose except by leave of the Local Government Board.

Obligation of
incumbent as
to burial.

42 & 43 Vict.
c. 31.

7. The incumbent of any ecclesiastical parish situate wholly or partly within the area for which a burial ground is provided under the Public Health (Interments) Act, 1879, shall, with respect to his own parishioners, and persons dying in his parish, be under the same obligation to perform funeral services in that burial ground as he is to perform funeral services in a burial ground provided under the Burial Acts, and the power of the burial authority to appoint a chaplain for a burial ground provided under the Public Health (Interments) Act, 1879, shall cease, and where there is no chaplain for a burial ground so provided, burials in the consecrated part of the ground shall be registered in like manner, and subject to the like provisions as burials in the unconsecrated part.

Notice of
intention to
bury.

8. The notice to be given of intention to bury in a burial ground maintained by a burial authority shall be given at such

time and to such person as the burial authority may direct, and so much of section one of the Burial Laws Amendment Act, 1880, as requires forty-eight hours' notice to be given in any such case shall be repealed. 43 & 44 Vict. c. 41.

9. The provisions of section seven of the Burial Act, 1853, as to allotment of the unconsecrated part of a burial ground, and the Burial Laws Amendment Act, 1880, as amended by this Act, shall apply to burial grounds provided under the Public Health (Interments) Act, 1879, as if the burial authority were a burial board. Application of certain provisions of Burial Acts to cemeteries under 42 & 43 Vict. c. 31.

10. Section fifteen of the Cemeteries Clauses Act, 1847 (relating to boundary fences) shall not apply to a burial ground provided under the Public Health (Interments) Act, 1879. Boundary fences. 10 & 11 Vict. c. 65.

11. In this Act the expression "burial authority" shall mean any burial board, any council, committee, or other local authority having the powers and duties of a burial board, and any local authority maintaining a cemetery under the Public Health (Interments) Act, 1879, or under any local Act. Meaning of burial authority. 42 & 43 Vict. c. 31.

12. The enactments mentioned in the Second Schedule to this Act are hereby repealed to the extent mentioned in the third column of that schedule. Repeal.

13.—(1.) This Act may be cited as the Burial Act, 1900, and may be cited and shall be construed with the Burial Acts, 1852 to 1885. Short title and commencement.

(2.) This Act shall come into operation on the first day of January one thousand nine hundred and one.

S C H E D U L E S.

FIRST SCHEDULE.

ENACTMENTS GIVING OR REFERRING TO POWERS WHICH ARE TO
BE TRANSFERRED TO THE LOCAL GOVERNMENT BOARD.

Session and Chapter.	Short Title.	Enactments.
15 & 16 Vict. c. 85. -	The Burial Act, 1852	Sections two, six, seven, nine, ten, and forty-four.
16 & 17 Vict. c. 134.	The Burial Act, 1853	Sections one, four, five, and six.
18 & 19 Vict. c. 138.	The Burial Act, 1855	Sections three, six, seven, eight, and seventeen.
20 & 21 Vict. c. 81. -	The Burial Act, 1857	Sections nine, ten, twenty-three, and twenty-four.
22 Vict. c. 1. - -	The Burial Act, 1859	Section one.
23 & 24 Vict. c. 64. -	The Burial Act, 1860	Section four.
34 & 35 Vict. c. 33. -	The Burial Act, 1871	Section one.

SECOND SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
15 & 16 Vict. c. 85. -	The Burial Act, 1852	Section thirty, from "and to build" to the end of the section. In section thirty-one the words "as aforesaid". In section thirty-two the words "from and after the consecration as aforesaid of"; the words from "except any portion" to "appoint, such burial ground"; the words "and shall be entitled to receive the same fees in respect of such burials which he has previously enjoyed and received"; the words "and shall be entitled to receive the same fees on such burials"; and the words "and received" where they last occur. Section thirty-three, from "but there shall be payable" to the end of the section. In section thirty-four, the words "without prejudice to the fees and payments herein specially provided for." Sections thirty-five, thirty-six, and thirty-seven. Section fifty so far as it relates to a burial ground under a burial authority.
16 & 17 Vict. c. 134.	The Burial Act, 1853	Section seven, so far as it re-enacts any provision repealed by this Act, and the words "that new burial ground shall be divided into consecrated and unconsecrated parts, in such proportions and" and from "and when any burial board" to the end of the section.
17 & 18 Vict. c. 87. -	The Burial Act, 1854	Sections eight and ten.
18 & 19 Vict. c. 128.	The Burial Act, 1855	Sections ten and fourteen.
20 & 21 Vict. c. 35. -	The City of London Burial Act, 1857.	Sections one, three, four, and five, and the Schedule.

Session and Chapter.	Short Title.	Extent of Repeal.
20 & 21 Vict. c. 81.	The Burial Act, 1857	Section three, from "and "may, if they see fit," to the end of the section. In section five, the words "and consecrated," and the words "and be entitled "to the same fees," in each case where they occur. In section twelve, the words "which application "the board is required to "make as soon as such "ground is in such fit and "proper condition". Section seventeen.

CHAPTER 16.

An Act to make further provision for the Term of Office of District Councillors and Guardians.

[10th July 1900:]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1.) Where, in pursuance of the Local Government Act, 1894, on such application or request as in that Act is mentioned, an order or direction has been or hereafter may be made or given by the council of a county or county borough, or a joint committee of any such councils, as the case may be, with respect to the retirement of members of an urban or rural district council, or of a board of guardians, the council or joint committee may, on the like application or request, by order rescind such first-mentioned order or direction.

Power to rescind Orders as to retirement of District Councillors or Guardians. 56 & 57 Vict. c. 73.

(2.) Every order made in pursuance of this section shall provide for all matters necessary or proper for carrying into effect the objects of the said order; and, in particular, shall require all the councillors or guardians in office at the date thereof to go out of office, and their places to be filled by the newly-elected councillors or guardians, on the fifteenth day of April next following that date.

(3.) Where an order, made in pursuance of this section, rescinds an order made in pursuance of subsection three of section sixty of the Local Government Act, 1894, the proviso to that subsection shall apply as if the first-mentioned order were made under the said subsection.

2. This Act may be cited as the District Councillors and Guardians (Term of Office) Act, 1900.